

Rajvir v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 July 2014 · Writ-C No. 37982 of 2014 · **Writ disposed; authority directed to proceed in accordance with law.**

HEADNOTE

A writ to quash a proposed-assessment notice under the U.P. Electricity Supply Code, 2005, issued with time to object, does not lie while the assessment remains unfinalised, because no coercive action can follow until then. The petition was disposed of with a direction that the authority proceed strictly in accordance with law.

FACTUAL SUMMARY

Rajvir filed a writ seeking quashing of a notice dated 9 April 2014 issued by the Executive Engineer, Electricity Distribution Division-3rd, Sector 16A, Noida. The notice informed him of a proposed assessment on his electricity connection under the U.P. Electricity Supply Code, 2005 and gave fifteen days to object. He submitted a reply on 6 June 2014. Counsel told the Court that no further order had been served and that he was being harassed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

proposed assessment — premature writ

HOLDING

A challenge to a proposed-assessment notice under the U.P. Electricity Supply Code, 2005 is premature: unless the assessment has been finalised there cannot be any coercive action against the consumer. The writ was disposed of with a direction to the respondent authority to proceed strictly in accordance with law. ¶ 1

FLAG Order cites Supply Code 2005 generally; proposed assessment with 15-day objection, no clause numbered.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 9.4.2014 PROPOSED-ASSESSMENT NOTICE AND THE PETITIONER'S 6.6.2014 OBJECTIONS

Writ disposed without examining the notice or the reply; authority directed to proceed in accordance with law. ¶ 1